

**HIGH COURT OF TRIPURA
AGARTALA**

W.P (C) (HC) No.01/2020

Sri Pintu Bhowmik

..... Petitioner(s)

- Vs. -

The State of Tripura and others

..... Respondent(s)

For Petitioner(s) : Mr. B. Debnath, Advocate.

For Respondent(s) : Mr. Ratan Datta, P.P.

**HON'BLE THE CHIEF JUSTICE MR. AKIL KURESHI
HON'BLE MR. JUSTICE ARINDAM LODH**

ORDER

27/01/2020

(Akil Kureshi, CJ).

Petitioner is a maternal uncle of one Purnima Debnath, who is admittedly aged about 20 years.

Case of the petitioner is that Purnima debi, who was residing with him, he had educated her and in that capacity, worried about her well being, he has filed this Habeas Corpus petition. According to the petitioner, Purnima debi has eloped with respondent No.6 on or around 31.12.2019. Petitioner contends that respondent No.6 is a married person and without disclosing his marriage, he enticed Purnima debi, who on such misrepresentation of facts decided to leave her house and go with him. Both of them are not traceable since then. In this background, the petitioner prays that a Writ of Habeas Corpus be issued against the respondents, directing respondent No.6 to produce the girl and further directing

the official respondents No.1 to 5 to ensure that the girl is produced before the Court.

From the record, it emerges that the niece of the petitioner is well above 18 years of age. According to the petitioner himself, she had contacted her family members from Karnataka and informed them that she had voluntarily left the house. The further version of the petitioner that his niece left the house with the respondent No.6 under misrepresentation of his marital status is not supported by any other evidence except the statement of the petitioner that he was so informed by his niece telephonically.

Purnima debi being an adult matured citizen of the country, she has a right of freedom of movement which cannot be curtailed. Whatever choice she may have made for herself, unless the question of her liberty being curtailed is involved, Writ of Habeas Corpus cannot be issued. If the petitioner's version that Purnima debi left with respondent No.6 under misconception of his marital status and is now prevented from returning by the said respondent is correct, the petitioner could have produced some material in support thereof. The way Purnima debi could speak to him on phone, she could have as well sent some other communication through electronic mode.

In facts of the present case, we are not inclined to use the police machinery to chase the respondent No.6 and the niece of the petitioner only to be brought before the Court. We record the statement of the learned Public Prosecutor that the niece of the petitioner has written letters to the police authorities clearly

stating that she has willingly left the house of her parents and relatives and is with the respondent No.6 out of her free will.

In the result, petition is dismissed.

(ARINDAM LODH), J

(AKIL KURESHI), CJ

